

Frequently Asked Questions (FAQ)

Guidance on Contract Modularization in Catena-X

Q: What is the minimum set of clauses every Usage Policy must contain?

Every Usage Policy concluded via the Registered Connector (RC) must contain at least two clauses:

1. **FrameworkAgreement:** *DataExchangeGovernance:1.0* — incorporates the DEG as the legal basis.
2. **UsagePurpose:** at least one purpose (predefined or individual) to preserve the Data Provider's data sovereignty.

Some use case standards impose additional mandatory clauses on top of these two. For example, CX-0136 (PCF) additionally requires a *Membership = active* clause and the *cx.pcf.base:1* usage purpose term.

Q: How do I define an individual usage purpose, and can you give an example?

An individual usage purpose lets you and your business partner agree on a specific, freely worded purpose of data use that is not covered by any of the predefined Catena-X purposes. You include it in the Usage Policy by setting *UsagePurpose | isAnyOf |* . Both parties must individually agree on the legal meaning of that string — the system does not interpret it.

Example: You are a Data Provider sharing US tariff information with a tier-1 supplier using the Catena-X aspect model *io.catenax.us_tariff_information:2.0.0*. None of the predefined Catena-X usage purposes covers this regulatory compliance scenario. You and your business partner therefore agree on an individual purpose string, for example *UsTariffDeclaration_CustomsCompliance*. You add *UsagePurpose | isAnyOf | UsTariffDeclaration_CustomsCompliance* to your Usage Policy. The resulting contract clause reads: *"Data Provider and Data Consumer are free to individually agree this certain purpose of use. The legal meaning of this certain purpose needs to be agreed individually between Data Provider and Data Consumer: UsTariffDeclaration_CustomsCompliance."* In your bilateral documentation, you and your business partner should specify the meaning precisely — for example: *"The Data Consumer may use the received data exclusively to fulfil US customs declaration obligations under applicable US tariff law, including submission to US customs authorities, for the parts identified by the globalAssetId referenced in the data exchange."* This ensures that the freely chosen purpose string has a clear, enforceable legal meaning.

Q: What happens if my RC agreement and my external contract conflict on a specific clause, for example jurisdiction?

The outcome depends on which *Precedence* value you have set in your Usage Policy:

- *cx.precedence.rcAgreement:1* (Scenario 1.b.i): The RC agreement clause wins. For example, if your RC contract names the Data Consumer's court as venue and your external contract names the Data Provider's court, the Data Consumer's court applies.
- *cx.precedence.contractReference:1* (Scenario 1.b.ii and 2.b): The external contract clause wins. Using the same example, the Data Provider's court would apply.

If no *Precedence* clause is included (Scenario 1.a), there is no external contract referenced at all, so no conflict can arise.

Q: Can I allow my business partner to share the data with their affiliated companies?

Yes. As a Data Provider you can permit sublicensing to affiliated companies using the *AffiliatesRegion* permission clause. You can restrict permission to specific regions (e.g., Europe, North America) by combining multiple *AffiliatesRegion | isAnyOf |* entries.

Conversely, you can explicitly **prohibit** sublicensing to affiliates in certain regions using the *AffiliatesRegion* prohibition clause with the same region values. You can also grant or deny sublicensing to individually named companies using *AffiliatesBpnl*.

If no affiliates clause is included, the DEG default applies: sublicensing to affiliated companies is generally permitted.

Q: What is the difference between `DataProvisioningEnd` and `DataUsageEnd`?

They govern two different obligations:

	<code>DataProvisioningEnd</code>	<code>DataUsageEnd</code>
Who is bound	Data Provider	Data Consumer
What it controls	How long the Data Provider must <i>make data available</i>	How long the Data Consumer is <i>permitted to use</i> data it has already received
Variants	<code>DataProvisioningEndDate</code> (fixed date) or <code>DataProvisioningEndDurationDays</code> (number of days)	<code>DataUsageEndDate</code> , <code>DataUsageEndDurationDays</code> , or <code>DataUsageEndDefinition = cx.dataUsageEnd.unlimited:1</code>

These two can be set independently. For example, a Data Provider may stop providing data after one year (`DataProvisioningEndDate`), while the Data Consumer retains the right to use already-received data indefinitely (`DataUsageEndDefinition = cx.dataUsageEnd.unlimited:1`).

Q: Can I combine `DataProvisioningEndDate` and `DataProvisioningEndDurationDays` in the same contract?

No. These two clauses are mutually exclusive — you may only use one at a time. The same mutual exclusivity applies to the `DataUsageEnd` variants: you must choose exactly one of `DataUsageEndDate`, `DataUsageEndDurationDays`, or `DataUsageEndDefinition = cx.dataUsageEnd.unlimited:1`. Setting more than one of these conflicting clauses simultaneously will be rejected by any application certified for standard CX-0152. See [Section 5.2](#) for the full list of mutually exclusive clause groups.

Q: What happens to the data after the contract or the permitted usage period ends?

The default obligation (derived from the DEG) is that the Data Consumer must delete the data upon expiry of the usage period or upon termination. You can explicitly reinforce or modify this using the `ContractTermination` clause:

- `cx.data.deletion:1`: The Data Consumer must delete all copies (including backups where reasonably possible) and confirm deletion upon request. A copy may be retained solely to document potential contractual breaches.
- `cx.data.keeping:1`: The Data Consumer is not required to delete the data but must continue to respect the contractual purpose limitations and protect the data against unauthorised access.

Q: Does the Data Exchange Governance (DEG) always apply, and can I override its provisions?

Yes, the [DEG](#) always applies — every contract concluded via RC automatically incorporates it by reference through the mandatory `FrameworkAgreement` clause. However, individually negotiated clauses agreed via the RC contract take precedence over any conflicting DEG provisions. Additionally, if you reference an external contract and set `Precedence = cx.precedence.contractReference:1`, that external contract's provisions also take precedence over conflicting RC agreement provisions. Your freedom of contract remains fully intact.

Q: What is the BPNL requirement when referencing an external contract?

The legal entities named in the referenced external contract must be authorized to conclude contracts for the BPNLs of the two parties performing the RC negotiation. For example, if your RC negotiation is performed between `BPNL000000001A34 Company A` and `BPNL000000005B67 Company B`, the external contract (Contract1234) must also be valid for exactly these two legal entities. However, the legal entities named in the referenced external contract may differ from those conducting the RC

negotiation. This means for this example, if *Company C* and *Company B* concluded the referenced external contract, the RC agreement is still valid, but only if *Company C* is authorized to conclude contracts that are also legally binding on *Company A*. This ensures that the contract reference is legally sound and unambiguous.